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कर्मचारी भविष्य निधि संगठन
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)

EMPLOYEES' PROVIDENT FUND ORGANISATION

(Ministry of Labour & Employment, Govt. of India)

मुख्य कार्यालय / Head Office

भविष्य निधि भवन, 14-भीकाजी कामा प्लेस, नई दिल्ली-110 066.

Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.

No. LC/9(15)Review of Legal Dashboard/

Dt: 15.01.2016

To

All Addl. CPFC (Zone)

Sub: Proper Entry in the data fields "Subject Matter" and "Amount of impugned orders" in respect of Supreme Court cases in the Legal Dash Board.

Sir/Madam

Following deficiencies have been observed in respect of the data entered in Legal Dashboard by various offices:-

S.N	Data Field	Deficiency
1	Case Subject Matter	Blank or Wrong entries*
2	Amount (if Determined or levied by the Impugned Order)	Mostly Blank or "zero" amount shown

* Irrelevant information such as details of parties, details of impugned HC order, etc. are being filled up.

2 It is requested to enter proper subject matter. Some of the relevant "Case Subject Matter" are as follows:-

- 7A Dispute: Applicability of Act - Basic Wage u/s-2(b) of the Act/ Subterfuge/ Minimum Wage
- 7A Dispute: Applicability of Act - Number of employees/ Definition of Employee u/s-2(f) of the Act
- 7A Dispute: Applicability of Act - infancy benefit
- 7A Dispute: Applicability of Act - clubbability
- 7A Dispute: Applicability of Act - Coverage dispute on Schedule of Industry Head /Class of Establishments for Coverage
- 7A Dispute: Amount of dues in default
- 14B dispute: rate of damages/ mens real/ etc.

- viii. Pension dispute u/p-11(3) of EPS'95
- ix. Pension dispute u/p-10(2) of EPS'95
- x. Recovery dispute: BIFR/SICA/Liquidation
- xi. Recovery dispute: section 17B of the Act
- xii. Recovery dispute: section 8/8B-8G of the Act
- xiii. Prosecution under section 14 of the Act
- xiv. Dispute related to Exemption or its Cancellation
- xv. Consumer Dispute: PF settlement/ Pension amount/ etc
- xvi. Service Matter
- xvii. EPFO is Proforma party, and EPFO's interest is limited to
- xviii. Other than above (please specify)

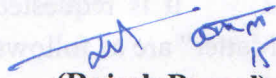
3 Further, the amount of the impugned 7A/14B Order or of the Recovery Certificate should be invariably mentioned in the column heading "**Amount** (if Determined or levied by the Impugned Order)". In case there is no amount involved in the case, the amount must be mentioned as "Not Applicable".

4 OICs and Nodal Officers under your jurisdiction may please be directed to ensure that these columns are filled-up with due care in the Legal Dashboard.

5 Needless to say, entries in other data fields must also be made appropriately. Disposed cases must also be updated immediately so that they reflect in "**Disposed Cases**" Report rather than under "Pending Cases" Report.

6 **It is requested that the quality of entry of the data entered in Legal Dashboard by the offices under your jurisdiction must be regularly checked at your level and regular instructions must be issued to them to set right the deficiencies wherever noted.**

Yours faithfully,


(Rajesh Bansal)

Adll. Central P.F. Commissioner (HQ)

Copy to:

- 1 All OICs and Nodal Officers
- 2 RPFC(NDC), for web-upload and with the request to create drop down list as detailed in para-2 above, in the data field "Case Subject Matter".
- 3 All ACCs in HO
- 4 Director NATRSS
- 5 ACC(HQ), PKU
- 6 PS to CPFC